

		light of the foregoing order granting Plaintiffs leave to file a First Amended Complaint. Plaintiffs shall provide notice of this ruling.
7	Rodriguez vs. Super Antojitos Don Chepe Corp 2025-01521776	Demurrer to Amended Complaint Defendants Jose De Jesus Lopez, Jose Eduardo Lopez aka Eduardo Lopez, and Claudia Lambaren's demurrer to plaintiff Julio C. Pacheco Rodriguez' First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10.) The Court finds that moving party has satisfied the meet and confer requirements for demurrers. (Code Civ. Proc., § 430.41, subd. (a)(3)(B); Thakur Decl., ¶¶ 2-4, Ex. A [requesting "availability to telephonically meet and confer"], Ex. B [same].) The FAC sufficiently alleges liability on the part of these moving parties pursuant to Labor Code, § 558.1. (FAC, ¶¶ 3-5 [alleging each moving defendant is an "owner, director, officer, and/or a managing agent" of the entity defendant], ¶ 13 [alleging "At all relevant times, Defendants Jose, Eduardo, and Lambaren in their individual capacities as an owner, director, officer, and/or a managing agent of SADCC supervised the Plaintiff and had authority over and made decisions about the Plaintiff's work schedule (e.g., when and how many hours a day and week the Plaintiff worked), Plaintiff's daily job duties, Plaintiff's working conditions (e.g., employee conduct rules, dress code, overtime, rest and meal breaks), Plaintiff's pay rate, and payment of the Plaintiff's wages," and "controlled and/or maintained the Plaintiff's employment and payroll records"].) Moving parties contend that more is required at the pleading stage, but largely rely on nonbinding federal authorities. (United Firefighters of Los Angeles City v. City of Los Angeles (1989) 210 Cal.App.3d 1095, 1115

		["a decision of a federal district court has no precedential value in this court; at best, it is persuasive authority only"].) Usher v. White (2021) 64 Cal.App.5th 883, was not a pleading case, and did not hold that a plaintiff must allege facts at the pleading stage showing an individual defendant was "personally involved" as moving parties contend; rather, determining individual liability under Labor Code, § 558.1 "requires an examination of the particular facts in light of the conduct, or lack thereof, attributable to" the individual defendant. (Usher v. White, supra at 897.) In any event, facts showing personal involvement are alleged. (FAC, ¶ 13.) Moving parties' other arguments attack only portions of the FAC, or specific allegations, without showing how the challenged causes of action fail entirely. (Quelimane Co., Inc. v. Stewart Title Guar. Co. (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a valid cause of action on any theory]; PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"].) Moving parties shall file an Answer to the FAC within 15 days. Plaintiff shall give notice.
8	Kell vs. Wilson 2023-01338314	Motion to Be Relieved as Counsel of Record Attorney Larsen E. Ensberg of Ensberg Law Group, APLC's Motion to be Relieved as Counsel of Record for Plaintiff Darrell William Lawrence is GRANTED. Service on Plaintiff and counsel of the other Parties was proper, and all required forms were filed pursuant to California Rules of Court, Rule 3.1362.